

**ALABAMA JUSTICE INFORMATION COMMISSION
ADMINISTRATIVE CODE****CHAPTER 265-X-1
GENERAL PROVISIONS****TABLE OF CONTENTS**

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265-X-1-.01 Statutory Authority.

(1) The Alabama Criminal Justice Information Center and Commission were created by Act No. 872, Acts of Alabama, 1975 Regular Session, now codified as Code of Ala. 1975, hereinafter Code, §§41-9-590, et seq.

(2) Section 41-9-594 of the Code states, in part: "The Commission shall establish its own rules, regulations, and policies for the performance of the responsibilities charged to it in this article."

Author:

Statutory Authority: Code of Ala. 1975, §41-9-594.

History: Filed June 24, 1987.

265-X-1-.02 Organization.

The Commission shall establish, develop, and continue to operate a center and system for the inter and intrastate accumulation, storage, retrieval, analysis, and dissemination of vital information relating to certain crimes, criminals, and criminal activity to be known as the Alabama Criminal Justice Information Center. Central responsibility for the development, maintenance, operation, and administration of the Alabama Criminal Justice Information Center was vested with the director of the ACJIC under the supervision of the Alabama Criminal Justice Information Center Commission.

Author:**Statutory Authority:** Code of Ala. 1975, §41-9-591.**History:** Filed June 24, 1987.**265-X-1-.03 Commission.**

(1) The Alabama Criminal Justice Information Center Commission shall be composed of two sections. The voting section will include: the attorney general, the chairman of the Pardons and Paroles Board, the commissioner of the Department of Corrections, the president of the Alabama Sheriffs' Association, the director of the Department of Public Safety, the president of the Alabama Association of Chiefs of Police, the director of the Alabama Department of Economic and Community Affairs, the president of the District Attorneys' Association, the president of the Circuit Clerks' Association, the Chief Justice of the Alabama Supreme Court, the president of the Alabama Association of District Judges, the president of the Alabama Association of Circuit Judges, the Governor's coordinator of Alabama Highway and Traffic Safety, and the director of the Information Services Division of the Alabama Department of Finance.

(2) The advisory section will include: the presiding officer of the Alabama Senate, the speaker of the House of Representatives, the president of the Association of County Commissions of Alabama, the president of the Alabama League of Municipalities, the director of the Administrative Office of Courts, and a citizen of the State of Alabama to be appointed by the Governor.

(3) Members shall have authority to select a designee based upon qualifications and with a view of continuity of representation and attendance at the Commission meetings. No person or individual shall continue to serve on the Alabama Criminal Justice Information Center Commission when he no longer officially represents the function or serves in the capacity enumerated herein as a member to which he was elected or appointed.

(4) Members of the Commission and their designees shall serve without compensation, except payment of their expenses may be paid in accordance with the applicable state travel regulations.

Author: Becki R. Goggins**Statutory Authority:** Code of Ala. 1975, §41-9-592.**History:** Filed June 24, 1987. **Amended:** Filed July 25, 2006; effective August 29, 2006.**265-X-1-.04 Committees.**

(1) The Commission shall appoint a privacy and security committee from the membership of the Commission who are elected officials,

consisting of a chairman and three members, to study the privacy and security implications of criminal justice information and to formulate policy recommendations for consideration by the Commission concerning the collection, storage, dissemination, or usage of criminal justice information.

(2) The Commission may establish other committees from time to time as it deems appropriate.

Author:

Statutory Authority: Code of Ala. 1975, §41-9-593.

History: Filed June 24, 1987.

265-X-1-.05 Meetings.

(1) The Commission shall meet at such times as designated by the Commission or by the chairman at the State Capitol or at other places as it deems necessary or convenient, but the chairman of the Commission must call a meeting four times a year at the State Capitol or main location of the ACJIC in the months of January, April, July, and October. The chairman of the Commission may also call a special meeting of the Commission at any time he deems it advisable or necessary. A quorum shall be a simple majority of the voting Commission membership or their designees, and all matters coming before the Commission shall be voted on by the Commission. The Commission will keep or cause to be kept a record of all transactions discussed or voted on by the Commission.

(2) Any person, group of persons, or organizational entity wishing to appear before the ACJIC Commission shall notify the ACJIC director, at least two weeks prior to the next regularly scheduled meeting, stating the requestor's name and purpose and providing any supporting material necessary. The director shall notify each Commission member of such request at least one week prior to the meeting. Should an emergency or crisis arise which precludes the two weeks' notice, then the prior notice may be waived upon the majority vote of the Commission.

Author:

Statutory Authority: Code of Ala. 1975, §41-9-593.

History: Filed June 24, 1987.

265-X-1-.06 Petition For Adoption, Amendment, Or Repeal Of Rules.

(1) Recommendations for the adoption, amendment or repeal of rules of this agency should be directed to the Director, Alabama Criminal Justice Information Center, 770 Washington Avenue (Suite 350), Montgomery, Alabama 36130.

(2) Such recommendations will be forwarded to the appropriate committee of the Commission for review and staffing. Committee action will be concluded within 60 days. Committee recommendations, along with the proposed action, will be presented to the Commission at its next regularly scheduled meeting.

(3) Recommendations that are disapproved by the Commission will be returned to the originator with appropriate comments as to the reason(s) for disapproval.

Author: Becki R. Goggins

Statutory Authority: Code of Ala. 1975, §41-9-593.

History: Filed June 24, 1987. **Amended:** Filed July 25, 2006; effective August 29, 2006.

265-X-1-.07 Petition For Declaratory Ruling.

(1) The Commission may issue declaratory rulings to any person substantially affected by a rule with respect to the validity of the rule, or with respect to the applicability to any person, property, or state of facts of any rule or statute enforceable by the Commission, or with respect to the meaning and scope of any order of the Commission. Such rulings shall be issued provided:

(a) The petitioner shows that he/she is substantially affected by the rule in question,

(b) Sufficient facts are supplied in the request to permit the Commission to make a valid determination, and

(c) The request arises from an actual question or controversy.

(2) A request for a declaratory ruling must be in writing and must specifically state that it is a "request for a declaratory ruling."

(3) Such rulings will be made in accordance with the Alabama Administrative Procedure Act, §41-22-11, Code.

Author:

Statutory Authority: Code of Ala. 1975, §41-9-593.

History: Filed June 24, 1987.

265-X-1-.08 Appeals From Rules Promulgated By The Commission.

The process for appeals by an individual or governmental body of any rule promulgated by the Commission shall first be to the Commission proper. The appellant may present his argument at a regular meeting of the Commission requesting the alteration or suggesting the nonapplicability of a particular rule. If the

appellant is not satisfied by the action of the Commission, then an appeal may be made to the circuit court of Montgomery County.

Author:

Statutory Authority: Code of Ala. 1975, §41-9-598.

History: Filed June 24, 1987.

265-X-1-.09

Fee Schedule A.

SCHEDULE

A Effective 10/1/2013

Alabama Background Check System

ABC Report \$15.00

Author: G. Ward Beeson, III

Statutory Authority: Code of Ala. 1975, §41-9-594(c).

History: **New Rule:** Filed October 28, 2013; effective December 2, 2013.